

 Internal Case Management System Worksheet - Internal Affairs Log				Top Allegation USE OF FORCE - LEVEL 2		Group G54-GROUP 54 - FORCE Date of This Report 07/30/2017	
Date Reported 07/30/2017	Date Assigned	IAB Log No. 2017-29139	Case No. (G54) C-2017-384	Folder Type CORRUPTION		Follow-Up No.	Worksheet Tracking No. 2304804

Date/Time Reported 07/30/2017 00:31	SOL Date 01/29/2019	Occurrence From Date/Time 07/29/2017 22:35	Occurrence To Date/Time
Contact Type	Source DIRECT FROM MOS	Source Number [REDACTED]	Position Number R2234 RECORDED

Grouped With
IAB Log No: <u>2017 - 29595</u>

Person's Last Name, First M.I. GONZALES, NICOLE			Role REPORTER		Status UNIFORM MEMBER OF SERVICE		Res. Pct. [REDACTED]
Anonymous NO		Anonymous#		Call Back Code			
MOS TAXID 934947		Command 077-077 PRECINCT	Rank SGT	Shield 1851			
Appointment Date 07/01/2004		Years Employed 13					
Nickname/Alias/Middle Name							
This Person and Subject Live Together		Identify Subject?		This Person States Subject is			
On Duty		In Uniform	Squad	Chart	Primary Assignment		
PERSON TESTS							

Person's Last Name, First M.I. CRAIG, PATRICK D			Role SUBJECT		Status UNIFORM MEMBER OF SERVICE		Res. Pct.
MOS TAXID 945623	Command 077-077 PRECINCT	Rank POM	Shield 26996				
Appointment Date 01/07/2008			Years Employed 9				
Nickname/Alias/Middle Name							
On Duty	In Uniform	Squad	Chart	Primary Assignment			
PERSON TESTS							

Allegations								
1	Full Allegation FADO Force - Physical Force	Classification Arrest Effectuated	Allegation Index O-Other	Allegation Date 07/30/2017	Finding -	Finding Date	Allegation Removed NO	Allegation Disposition
Comments								
2	Full Allegation Fail to Provide Name/Shield -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 07/30/2017	Finding -	Finding Date	Allegation Removed NO	Allegation Disposition

Comments								
3	Full Allegation FADO Abuse of Authority -	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 07/30/2017	Finding -	Finding Date	Allegation Removed NO	Allegation Disposition
Comments								
4	Full Allegation Use of Force - Level 1	Classification Arrest Effected	Allegation Index Force Investigation Notification	Allegation Date 07/30/2017	Finding -	Finding Date	Allegation Removed NO	Allegation Disposition
Comments								

Person's Last Name, First M.I. [REDACTED]				Role COMPLAINANT		Status CITY GOVERNMENT OFFICIAL		Res. Pct. [REDACTED]
Anonymous		Anonymous#			Call Back Code			
Nickname/Alias/Middle Name								
Address [REDACTED]						Apt No. [REDACTED]		NYSID No.
Alternate Address						Apt No.		
Sex FEMALE	Race	Date of Birth [REDACTED]	Age [REDACTED]	Height	Weight			
Age From	Age To	Condition	If Injured or Deceased Location		U.S. Citizen		State/Country of Birth	
Home Telephone	Business Telephone	Cell Phone [REDACTED]	Beeper #	E-Mail Address	Call Back Phone# [REDACTED]			
This Person and Subject Live Together		Identify Subject?	This Person States Subject is					

Person's Last Name, First M.I. [REDACTED]				Role VICTIM		Status CIVILIAN NON MEMBER OF SERVICE		Res. Pct. [REDACTED]
Anonymous		Anonymous#			Call Back Code			
Nickname/Alias/Middle Name								
Address [REDACTED]						Apt No. [REDACTED]		NYSID No. [REDACTED]
Alternate Address						Apt No.		
Sex MALE	Race	Date of Birth [REDACTED]	Age [REDACTED]	Height	Weight			
Age From	Age To	Condition	If Injured or Deceased Location		U.S. Citizen		State/Country of Birth	
Home Telephone	Business Telephone	Cell Phone	Beeper #	E-Mail Address	Call Back Phone#			
This Person and Subject Live Together		Identify Subject?	This Person States Subject is					

Person's Last Name, First M.I. PATEL, AVINASH A				Role SUBJECT		Status UNIFORM MEMBER OF SERVICE		Res. Pct.
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MOS TAXID 940551	Command 077-077 PRECINCT	Rank SGT	Shield 05322	
Appointment Date 01/09/2006			Years Employed 11	
Nickname/Alias/Middle Name				
On Duty	In Uniform	Squad	Chart	Primary Assignment
PERSON TESTS				

Allegations								
1	Full Allegation Fail to Provide Name/Shield -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 07/30/2017	Finding -	Finding Date	Allegation Removed NO	Allegation Disposition
Comments								
2	Full Allegation FADO Abuse of Authority -	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 07/30/2017	Finding -	Finding Date	Allegation Removed NO	Allegation Disposition
Comments								

Person's Last Name, First M.I. KHITAB, UMAR			Role SUBJECT	Status UNIFORM MEMBER OF SERVICE	Res. Pct.
MOS TAXID 952929	Command 077-077 PRECINCT	Rank POM	Shield 20552		
Appointment Date 07/11/2012			Years Employed 5		
Nickname/Alias/Middle Name					
On Duty	In Uniform	Squad	Chart	Primary Assignment	
PERSON TESTS					

Allegations								
1	Full Allegation Fail to Provide Name/Shield -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 07/30/2017	Finding -	Finding Date	Allegation Removed NO	Allegation Disposition
Comments								
2	Full Allegation FADO Abuse of Authority -	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 07/30/2017	Finding -	Finding Date	Allegation Removed NO	Allegation Disposition
Comments								

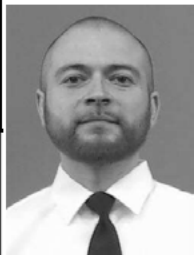
Person's Last Name, First M.I. VIERA, ALEX J			Role SUBJECT	Status UNIFORM MEMBER OF SERVICE	Res. Pct. [REDACTED]
MOS TAXID 945080	Command 077-077 PRECINCT	Rank POM	Shield 14168		
Appointment Date 07/09/2007			Years Employed 10		

Nickname/Alias/Middle Name				
On Duty	In Uniform	Squad	Chart	Primary Assignment
PERSON TESTS				

Allegations								
1	Full Allegation Fail to Provide Name/Shield -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 07/30/2017	Finding -	Finding Date	Allegation Removed NO	Allegation Disposition
Comments								
2	Full Allegation FADO Abuse of Authority -	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 07/30/2017	Finding -	Finding Date	Allegation Removed NO	Allegation Disposition
Comments								

Person's Last Name, First M.I. ESPOSITO, ALISON A				Role PATROL DUTY CAPTAIN		Status UNIFORM MEMBER OF SERVICE		Res. Pct. [REDACTED]
Anonymous		Anonymous#			Call Back Code			
MOS TAXID 920258		Command 077-077 PRECINCT	Rank CPT	Shield 00000				
Appointment Date 12/08/1997				Years Employed 20				
Nickname/Alias/Middle Name								
This Person and Subject Live Together		Identify Subject?		This Person States Subject is				
On Duty	In Uniform	Squad	Chart	Primary Assignment				
PERSON TESTS								

Person's Last Name, First M.I. [REDACTED]				Role WITNESS		Status CIVILIAN NON MEMBER OF SERVICE		Res. Pct.
Anonymous		Anonymous#			Call Back Code			
Nickname/Alias/Middle Name								
Address						Apt No.		NYSID No.
Alternate Address						Apt No.		
Sex FEMALE	Race	Date of Birth	Age	Height	Weight			
Age From 0	Age To 0	Condition	If Injured or Deceased Location		U.S. Citizen		State/Country of Birth	
Home Telephone	Business Telephone	Cell Phone	Beeper #	E-Mail Address	Call Back Phone# [REDACTED]			
This Person and Subject Live Together		Identify Subject?		This Person States Subject is				

Person's Last Name, First M.I. QUINTERO, ROGER				Role SUBJECT		Status UNIFORM MEMBER OF SERVICE		Res. Pct. [REDACTED]
MOS TAXID 943706	Command 077-077 PRECINCT	Rank SGT	Shield 05330					
Appointment Date 01/10/2007			Years Employed 10					

Nickname/Alias/Middle Name				
On Duty	In Uniform	Squad	Chart	Primary Assignment
PERSON TESTS				

Allegations								
1	Full Allegation Fail to Provide Name/Shield -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 07/30/2017	Finding -	Finding Date	Allegation Removed NO	Allegation Disposition
Comments								
2	Full Allegation FADO Abuse of Authority -	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 07/30/2017	Finding -	Finding Date	Allegation Removed NO	Allegation Disposition
Comments								

Person's Last Name, First M.I. ONDREJACK, MATTHEW G			Role SUBJECT	Status UNIFORM MEMBER OF SERVICE	Res. Pct. [REDACTED]
MOS TAXID 956989	Command 077-077 PRECINCT	Rank POM	Shield 02668		
Appointment Date 07/09/2014			Years Employed 3		

Nickname/Alias/Middle Name				
On Duty	In Uniform	Squad	Chart	Primary Assignment
PERSON TESTS				

Allegations								
1	Full Allegation Fail to Provide Name/Shield -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 07/30/2017	Finding -	Finding Date	Allegation Removed NO	Allegation Disposition
Comments								
2	Full Allegation FADO Abuse of Authority -	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 07/30/2017	Finding -	Finding Date	Allegation Removed NO	Allegation Disposition
Comments								

Person's Last Name, First M.I.			Role SUBJECT		Status UNKNOWN UNI MEM OF SERVICE	Res. Pct.
Nickname/Alias/Middle Name						
Address					Apt No.	NYSID No.
Alternate Address					Apt No.	
Sex	Race	Date of Birth	Age	Height	Weight	
Age From 0	Age To 0	Condition	If Injured or Deceased Location		U.S. Citizen	State/Country of Birth
Home Telephone	Business Telephone	Cell Phone	Beeper #	E-Mail Address	Call Back Phone#	

Allegations								
1	Full Allegation FADO Force - Physical Force	Classification Arrest Effectuated	Allegation Index O-Other	Allegation Date 07/30/2017	Finding -	Finding Date	Allegation Removed NO	Allegation Disposition

Comments							
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Incident Documents							
1	Document Type NYPD SUMMONS	Document Number 4438156142	Document Info				

Property	Property Status
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Evidence			
Evidence Collected	Evidence Collection Team Crime Scene Requested	Who Responded	ECT/CSU Run No.

ATTACHMENT							
1	<u>'CCRB/Summons/NYC Corrections ID of complainant'</u>						
2	<u>'C/C Audio'</u>						
3	<u>'Video'</u>						

Incident Location List							
1	Location Type OCCURRENCE	Jurisdiction	In or Near NYPD Command	PCT 077-077 PRECINCT	Common Locations Outside of NYC		
	Address Location NYC	Location Within FRONT OF	Street [REDACTED]	City [REDACTED]	State NY	Zip 11213	Apt #
	Cross Street [REDACTED]		Intersection of	Premise Type	Indicate Premise Name if Known	Exact Location Within Premise Type, if Known	
	Occurrence/Effective On or From 07/29/2017 22:35		Occurrence Through :	Statement of Details Specific to this Location			

Topic/Subject: (Internal Affairs Log) INTERNAL AFFAIRS LOG							
Details CCRB WILL INVESTIGATE THE FADO ALLEGATIONS AGAINST UNIFORMED MEMBERS OF THE SERVICE CONTAINED IN THIS LOG. THE NYPD WILL INVESTIGATE ALL OTHER ALLEGATIONS, INCLUDING FADO ALLEGATIONS AGAINST CIVILIAN MEMBERS OF THE SERVICE. THE INFORMATION PERTAINING TO THESE ALLEGATIONS AND THE SUBSEQUENT INVESTIGATION IS CONFIDENTIAL.							
(MK) On Sunday, 07/30/17 at 0015 hours, Ext. [REDACTED] Sgt. Gonzales, Tax# 934947, 77 Pct reported the following details: Complainant [REDACTED] walked into the 77 Pct at 2300 hours and stated she was on scene when her son, [REDACTED] DOB [REDACTED] was stopped by plainclothes officers and in the midst of the stop, an unknown officer did punch the respondent, [REDACTED] in the face. Complainant stated a female neighbor, identified only as [REDACTED] provided the video to the complainant and said video was released to the media by the neighbor. Complainant stated she requested the names of the MOS, at which time officers directed her to go to the Pct to get requested information and details of the incident. Complainant proceeded to the 77 Pct and was later informed from her son via phone, that he was released from Police custody with a "C" Summons. Unknown if medical attention was requested. The respondent refused to come to the pct. DCPI contacted the 77 Desk to inform them of the release of the video to the media regarding this incident. Sgt. Gonzales identified PO Craig, Tax# 945623, 77 Pct as the subject officer. Sgt. Patel, Tax# 940551; PO Khitab, Tax# 952929; and PO Viera, Tax# 945080 on scene. Captain Esposito notified. I/O requested video to be forwarded to the Command Center. CCRB paperwork will be forwarded upon completion. (MK)							

0045 hours: ICIS check revealed no prior related logs. (MK)

0047 hours: DAS Lite query yielded [REDACTED] M/B DOB [REDACTED] NYSID# [REDACTED] (MK)

0055 hours: Video attached. Video displays several officers surrounding [REDACTED] while he appears to be handcuffed, with subject officer striking [REDACTED] in the face as he yells "put your hands behind your back". (MK)

0100 hours: Sgt. Gonzales stated DCPI, unknown name of MOS, was contacted by an unknown reporter about the video. PO Viera, Tax# 945080 issued "C" Summons# [REDACTED] for Disorderly Conduct. Sgt. Gonzales will follow-up with further details and paperwork. (MK)

0130 hours: IAB Captain John notified and recommends Callout to Group 9. (MK)

CCRB Paperwork/Summons/Complainant's NYC Corrections ID received and attached. Complainant states "...then two other undercover cops started to push me, I said don't put your hand on me I have my credential out."(MK)

Sgt. Gonzales stated Sgt. Quintero, Tax# 943706 and PO Ondrejack, Tax# 956989 were on scene. Lt. Eng, DCPI initially contacted the 77 Desk stating Pix Eleven News informed them of the video release. (MK)

0602 hours: FORMS check revealed TRI# 2017-077-000129-PO Viera; 129-2-PO Craig; 129-3-PO Ondrejack; 129-4-PO Rosiello, Tax# 951180; 129-5-Sgt. Quintero. (MK)

Call audio attached to log. (MK)

0810 Sgt Garcia(CC) notified Sgt Colavito (G54)

1200 8/02/17 DelPilar (ASM) reports conferral with Insp. Morello. Case will be a "C" investigation with Group 54. (SgtMG)

SPIN OFF LOG #17-29595 WAS CREATED TO AS A CCRB INFORMATIONAL PURPOSES ONLY LOG**(ADP)

List of Persons Added/Updated in the Log

Person's Last Name, First M.I. [REDACTED]		Role COMPLAINANT		Status CIVILIAN NON MEMBER OF SERVICE		Res. Pct. [REDACTED]
Anonymous NO	Anonymous#		Call Back Code			
Nickname/Alias/Middle Name						
Address [REDACTED]				Apt No. [REDACTED]		NYSID No.
Alternate Address				Apt No.		
Sex MALE	Race	Date of Birth [REDACTED]	Age [REDACTED]	Height	Weight	
Age From	Age To	Condition	If Injured or Deceased Location		U.S. Citizen	State/Country of Birth
Home Telephone	Business Telephone	Cell Phone	Beeper #	E-Mail Address	Call Back Phone# [REDACTED]	

Person's Last Name, First M.I. CRAIG, PATRICK D			Role SUBJECT		Status UNIFORM MEMBER OF SERVICE		Res. Pct.
MOS TAXID 945623	Command 077-077 PRECINCT	Rank POM	Shield 26996				
Appointment Date 01/07/2008			Years Employed 9				
Nickname/Alias/Middle Name							

Allegations								
1	Full Allegation Additional Information Prior Log -	Classification NOTIFICATION/Additional Information	Allegation Index ADD-Additional Information	Allegation Date 07/30/2017	Finding -	Finding Date	Allegation Removed NO	Allegation Disposition
Comments								

Person's Last Name, First M.I. PATEL, AVINASH A			Role SUBJECT	Status UNIFORM MEMBER OF SERVICE	Res. Pct.
MOS TAXID 940551	Command 077-077 PRECINCT	Rank SGT	Shield 05322		
Appointment Date 01/09/2006			Years Employed 11		
Nickname/Alias/Middle Name					

Allegations								
1	Full Allegation Additional Information Prior Log -	Classification NOTIFICATION/Additional Information	Allegation Index ADD-Additional Information	Allegation Date 07/30/2017	Finding -	Finding Date	Allegation Removed NO	Allegation Disposition
Comments								

Person's Last Name, First M.I. KHITAB, UMAR			Role SUBJECT	Status UNIFORM MEMBER OF SERVICE	Res. Pct.
MOS TAXID 952929	Command 077-077 PRECINCT	Rank POM	Shield 20552		
Appointment Date 07/11/2012			Years Employed 5		
Nickname/Alias/Middle Name					

Allegations								
1	Full Allegation Additional Information Prior Log -	Classification NOTIFICATION/Additional Information	Allegation Index ADD-Additional Information	Allegation Date 07/30/2017	Finding -	Finding Date	Allegation Removed NO	Allegation Disposition
Comments								

Person's Last Name, First M.I. VIERA, ALEX J			Role SUBJECT	Status UNIFORM MEMBER OF SERVICE	Res. Pct. ■
MOS TAXID 945080	Command 077-077 PRECINCT	Rank POM	Shield 14168		
Appointment Date 07/09/2007			Years Employed 10		

Nickname/Alias/Middle Name

Allegations

1	Full Allegation Additional Information Prior Log -	Classification NOTIFICATION/Additional Information	Allegation Index ADD- Additional Information	Allegation Date 07/30/2017	Finding -	Finding Date	Allegation Removed NO	Allegation Disposition	
Comments									

Person's Last Name, First M.I. QUINTERO, ROGER			Role SUBJECT	Status UNIFORM MEMBER OF SERVICE	Res. Pct. ■
MOS TAXID 943706	Command 077-077 PRECINCT	Rank SGT	Shield 05330		
Appointment Date 01/10/2007			Years Employed 10		

Nickname/Alias/Middle Name

Allegations

1	Full Allegation Additional Information Prior Log -	Classification NOTIFICATION/Additional Information	Allegation Index ADD- Additional Information	Allegation Date 07/30/2017	Finding -	Finding Date	Allegation Removed NO	Allegation Disposition	
Comments									

Person's Last Name, First M.I. ONDREJACK, MATTHEW G			Role SUBJECT	Status UNIFORM MEMBER OF SERVICE	Res. Pct. ■
MOS TAXID 956989	Command 077-077 PRECINCT	Rank POM	Shield 02668		
Appointment Date 07/09/2014			Years Employed 3		

Nickname/Alias/Middle Name

Allegations

1	Full Allegation Additional Information Prior Log -	Classification NOTIFICATION/Additional Information	Allegation Index ADD- Additional Information	Allegation Date 07/30/2017	Finding -	Finding Date	Allegation Removed NO	Allegation Disposition	
Comments									

Person's Last Name, First M.I. ■■■■■			Role WITNESS	Status CIVILIAN NON MEMBER OF SERVICE	Res. Pct. ■			
Anonymous	Anonymous#			Call Back Code				
Nickname/Alias/Middle Name								
Address ■■■■■				Apt No. ■■■	NYSID No.			

Alternate Address					Apt No.
Sex FEMALE	Race	Date of Birth [REDACTED]	Age [REDACTED]	Height	Weight
Age From	Age To	Condition	If Injured or Deceased Location	U.S. Citizen	State/Country of Birth
Home Telephone	Business Telephone	Cell Phone [REDACTED]	Beeper #	E-Mail Address	Call Back Phone#

Person's Last Name, First M.I.	Role WITNESS	Status CIVILIAN NON MEMBER OF SERVICE	Res. Pct.
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Anonymous	Anonymous#	Call Back Code
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Nickname/Alias/Middle Name

Address	Apt No.	NYSID No.
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Alternate Address	Apt No.
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Sex MALE	Race	Date of Birth	Age	Height	Weight
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Age From 0	Age To 0	Condition	If Injured or Deceased Location	U.S. Citizen	State/Country of Birth
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Home Telephone	Business Telephone	Cell Phone	Beeper #	E-Mail Address	Call Back Phone#
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Person's Last Name, First M.I.	Role WITNESS	Status CIVILIAN NON MEMBER OF SERVICE	Res. Pct.
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Anonymous	Anonymous#	Call Back Code
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Nickname/Alias/Middle Name

Address	Apt No.	NYSID No.
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Alternate Address	Apt No.
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Sex FEMALE	Race	Date of Birth	Age	Height	Weight
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Age From 0	Age To 0	Condition	If Injured or Deceased Location	U.S. Citizen	State/Country of Birth
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Home Telephone	Business Telephone	Cell Phone	Beeper #	E-Mail Address	Call Back Phone#
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Person's Last Name, First M.I.	Role SUBJECT	Status UNKNOWN UNI MEM OF SERVICE	Res. Pct.
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Nickname/Alias/Middle Name

Address	Apt No.	NYSID No.
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Alternate Address	Apt No.
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Sex	Race	Date of Birth	Age	Height	Weight
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Age From 0	Age To 0	Condition	If Injured or Deceased Location	U.S. Citizen	State/Country of Birth
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Home Telephone	Business Telephone	Cell Phone	Beeper #	E-Mail Address	Call Back Phone#
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Allegations								
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1	Full Allegation FADO Force - Physical Force	Classification Arrest Effected	Allegation Index O-Other	Allegation Date 07/30/2017	Finding -	Finding Date	Allegation Removed NO	Allegation Disposition
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Comments

Person's Last Name, First M.I. [REDACTED]		Role WITNESS		Status CIVILIAN NON MEMBER OF SERVICE		Res. Pct. [REDACTED]
Anonymous	Anonymous#			Call Back Code		
Nickname/Alias/Middle Name						
Address [REDACTED]				Apt No. [REDACTED]		NYSID No.
Alternate Address				Apt No.		
Sex FEMALE	Race WHITE	Date of Birth [REDACTED]	Age [REDACTED]	Height	Weight	
Age From	Age To	Condition Apparently Normal	If Injured or Deceased Location		U.S. Citizen	State/Country of Birth
Home Telephone	Business Telephone	Cell Phone	Beeper #	E-Mail Address	Call Back Phone# [REDACTED]	

Person's Last Name, First M.I. [REDACTED]		Role WITNESS		Status CIVILIAN NON MEMBER OF SERVICE		Res. Pct.
Anonymous	Anonymous#			Call Back Code		
Nickname/Alias/Middle Name						
Address [REDACTED]				Apt No.		NYSID No.
Alternate Address [REDACTED]				Apt No.		
Sex FEMALE	Race BLACK	Date of Birth	Age	Height	Weight	
Age From 0	Age To 0	Condition Apparently Normal	If Injured or Deceased Location		U.S. Citizen	State/Country of Birth
Home Telephone	Business Telephone	Cell Phone	Beeper #	E-Mail Address	Call Back Phone# [REDACTED]	

Person's Last Name, First M.I. [REDACTED]		Role WITNESS		Status CIVILIAN NON MEMBER OF SERVICE		Res. Pct. [REDACTED]
Anonymous	Anonymous#			Call Back Code		
Nickname/Alias/Middle Name						
Address [REDACTED]				Apt No. [REDACTED]		NYSID No.
Alternate Address				Apt No.		
Sex MALE	Race	Date of Birth [REDACTED]	Age [REDACTED]	Height	Weight	
Age From	Age To	Condition Apparently Normal	If Injured or Deceased Location		U.S. Citizen	State/Country of Birth
Home Telephone	Business Telephone	Cell Phone	Beeper #	E-Mail Address	Call Back Phone# [REDACTED]	

Person's Last Name, First M.I. [REDACTED]		Role WITNESS		Status CIVILIAN NON MEMBER OF SERVICE		Res. Pct. [REDACTED]
Anonymous	Anonymous#			Call Back Code		
Nickname/Alias/Middle Name						

Address [REDACTED]					Apt No.	NYSID No.
Alternate Address					Apt No.	
Sex FEMALE	Race WHITE	Date of Birth [REDACTED]	Age [REDACTED]	Height	Weight	
Age From	Age To	Condition Apparently Normal	If Injured or Deceased Location		U.S. Citizen	State/Country of Birth
Home Telephone	Business Telephone	Cell Phone	Beeper #	E-Mail Address	Call Back Phone# [REDACTED]	

Person's Last Name, First M.I. [REDACTED]		Role WITNESS	Status CIVILIAN NON MEMBER OF SERVICE	Res. Pct. [REDACTED]
Anonymous	Anonymous#		Call Back Code	

Nickname/Alias/Middle Name						
Address [REDACTED]					Apt No. [REDACTED]	NYSID No.
Alternate Address					Apt No.	
Sex FEMALE	Race WHITE	Date of Birth	Age	Height	Weight	
Age From 0	Age To 0	Condition Apparently Normal	If Injured or Deceased Location		U.S. Citizen	State/Country of Birth
Home Telephone	Business Telephone	Cell Phone	Beeper #	E-Mail Address	Call Back Phone# [REDACTED]	

Person's Last Name, First M.I. CRAIG, PATRICK D			Role SUBJECT	Status UNIFORM MEMBER OF SERVICE	Res. Pct.
MOS TAXID 945623	Command 077-077 PRECINCT	Rank POM	Shield 26996		
Appointment Date 01/07/2008			Years Employed 9		
Nickname/Alias/Middle Name					

Allegations								
1	Full Allegation FADO Force - Physical Force	Classification Arrest Effected	Allegation Index O-Other	Allegation Date 07/30/2017	Finding 04 - Info. and Intelligence	Finding Date 10/11/2018	Allegation Removed NO	Allegation Disposition NONE
Comments The allegation of FADO □ Force Physical Force was investigated by CCRB under CCRB Case # 201706371. CCRB's finding for this allegation is Substantiated. CCRB's rationale for this finding is that PO Craig wrongfully used force, in that he struck [REDACTED] in the face without police necessity. IAB concurs with CCRB's finding and it is noted in IAB's Force □ Physical Force finding. Therefore the allegation is closed as Information and Intelligence. Charges and Specifications were preferred by CCRB. CCRB Specification # 1 addresses this allegation.								
2	Full Allegation Fail to Provide Name/Shield -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 07/30/2017	Finding 07 - Substantiated	Finding Date 10/11/2018	Allegation Removed NO	Allegation Disposition CHARGES AND SPECS
Comments								

The allegation of Fail to Provide Name/Shield was addressed by CCRB under CCRB Case # 201706371 as FADO Abuse of Authority ☐ Fail to Provide Name/Shield and was Substantiated by CCRB. CCRB's rationale for this finding is that PO Craig refused to provide his name to [REDACTED] with sufficient legal authority. IAB Concurs with CCRB's finding. There is video which shows [REDACTED] ask PO Craig for his name. PO Craig responded by directing [REDACTED] to the 77 Precinct. CCRB served Charges and Specifications. CCRB Specification # 2 addresses this allegation.								
3	Full Allegation Additional Information Prior Log -	Classification NOTIFICATION/Additional Information	Allegation Index ADD-Additional Information	Allegation Date 07/30/2017	Finding 04 - Info. and Intelligence	Finding Date 10/11/2018	Allegation Removed NO	Allegation Disposition NONE
Comments This investigation disclosed that an unknown officer who was identified as PO Viera grabbed [REDACTED] by the hair and dragged him inside of the rear seat of an RMP. [REDACTED] further stated that PO Viera closed the RMP's door on his head. This allegation is addressed in PO Viera's findings. As such the allegation will be closed as Information and Intelligence.								
4	Full Allegation Force - Physical Force	Classification Arrest Effected	Allegation Index O-Other	Allegation Date 10/23/2018	Finding 07 - Substantiated	Finding Date 10/11/2018	Allegation Removed NO	Allegation Disposition CHARGES AND SPECS
Comments This investigation disclosed that on July 29, 2017, Sgt. Nicole Gonzales (77 Precinct) called the Command Center to report that [REDACTED] (Complainant's Mother) walked into the 77 Precinct to report that her son, [REDACTED] was stopped by plainclothes officers and punched in the face in regards to Criminal Court Summons # [REDACTED] for Disorderly Conduct (Violent Behavior). The incident took place in front of [REDACTED] on July 29, 2017. [REDACTED] refused medical attention. [REDACTED] stated that he was punched in the face by a plainclothes officer while officers were attempting to put his hands behind his back. PO Craig was formally interviewed and stated that he believed that [REDACTED] had a firearm because he placed his right hand inside the rear of his waistband and refused to give officers his hands. PO Craig stated that he utilized one hand strike to [REDACTED] 's face in order to get control of his hands. Video recovered from the incident location shows several plainclothes officers holding [REDACTED] when PO Craig punches him in the face. IAB finds that the strike was unnecessary due to [REDACTED] having his hands behind his back while one handcuff was applied and he was being engaged by multiple officers. [REDACTED] provided no active threat to the officers. PO Craig's hand strike was unnecessary. Therefore, this allegation will be closed as Substantiated. This allegation was investigated by CCRB under CCRB Case # 201706371. CCRB Substantiated the FADO Force ☐ Physical Force allegation and preferred Charges and Specifications. CCRB Specification # 1 addresses this allegation.								
5	Full Allegation FADO Discourtesy - Word	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 10/24/2018	Finding 04 - Info. and Intelligence	Finding Date 10/11/2018	Allegation Removed NO	Allegation Disposition NONE
Comments The allegation of FADO Discourtesy ☐ Word was investigated by CCRB under CCRB Case # 201706371. CCRB's finding for this allegation is Substantiated. CCRB's rationale for this finding is that PO Craig was discourteous, in that he spoke discourteously to [REDACTED] by calling him an "animal" without sufficient legal authority. Therefore the allegation will be closed as Information and Intelligence. Charges and Specifications were preferred by CCRB. CCRB Specification # 3 addresses this allegation.								
6	Full Allegation FADO Discourtesy - Word	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 10/24/2018	Finding 04 - Info. and Intelligence	Finding Date 10/11/2018	Allegation Removed NO	Allegation Disposition NONE
Comments The allegation of FADO Discourtesy ☐ Word was investigated by CCRB under CCRB Case # 201706371. CCRB's finding for this allegation is Substantiated. CCRB's rationale for this finding is that PO Craig was discourteous, in that he spoke discourteously to [REDACTED] by calling him an "idiot" without sufficient legal authority. Therefore the allegation will be closed as Information and Intelligence. Charges and Specifications were preferred by CCRB. CCRB Specification # 4 addresses this allegation.								
7	Full Allegation FADO Offensive Language - Other Offensive Language	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 10/24/2018	Finding 04 - Info. and Intelligence	Finding Date 10/11/2018	Allegation Removed NO	Allegation Disposition NONE

Comments The allegation of FADO Offensive Language ☐ Other Offensive Language was investigated by CCRB under CCRB Case # 201706371. CCRB's finding for this allegation is Substantiated. CCRB's rationale for this finding is that PO Craig was discourteous, in that he spoke discourteously to [REDACTED] by using profanity without legal authority. Therefore the allegation will be closed as Information and Intelligence. Charges and Specifications were preferred by CCRB. CCRB Specification # 5 addresses this allegation.								
8	Full Allegation FADO Abuse of Authority - Fail to Provide Name/Shield	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 10/24/2018	Finding 04 - Info. and Intelligence	Finding Date 10/11/2018	Allegation Removed NO	Allegation Disposition NONE
Comments The allegation of FADO Abuse of Authority ☐ Fail to Provide Name/Shield was investigated by CCRB under CCRB Case # 201706371. CCRB's finding for this allegation is Substantiated. CCRB's rationale for this finding is that PO Craig refused to provide his name to [REDACTED] without sufficient legal authority. IAB concurs with CCRB's finding and it is noted in IAB's Fail to Provide Name/Shield finding. Therefore the allegation is closed as Information and Intelligence. Charges and Specifications were preferred by CCRB. CCRB Specification # 2 addresses this allegation.								
9	Full Allegation Use of Force - Level 2	Classification Arrest Effected	Allegation Index Force Investigation Notification	Allegation Date 11/16/2018	Finding 04 - Info. and Intelligence	Finding Date 10/11/2018	Allegation Removed NO	Allegation Disposition NONE
Comments This investigation disclosed that on July 29, 2017 based on the Use of Force Investigative Responsibilities and reporting guide this matter was investigated by the Internal Affairs Bureau as a Level 2 Use of Force due to the allegation of excessive force in that PO Craig struck [REDACTED] with a closed fist while his hands were behind his back. No noted injuries were sustained. Therefore the allegation will be closed as Information and Intelligence.								
10	Full Allegation FADO Abuse of Authority -	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 07/30/2017	Finding 04 - Info. and Intelligence	Finding Date 10/11/2018	Allegation Removed YES	Allegation Disposition NONE
Comments On August 2, 2017, the Internal Affairs Bureau created a Civilian Complaint Review Board information purpose under log#2017-29595 and CCRB Case # 201706371. CCRB will investigate the FADO Abuse of Authority against uniformed members of service contained in this log. The allegation of FADO Abuse of Authority will be closed as Information and Intelligence.								
11	Full Allegation Use of Force - Level 1	Classification Arrest Effected	Allegation Index Force Investigation Notification	Allegation Date 07/30/2017	Finding 04 - Info. and Intelligence	Finding Date 10/11/2018	Allegation Removed YES	Allegation Disposition NONE
Comments This investigation disclosed that on July 29, 2017, based on the Use of Force Investigative responsibilities and reporting guide this matter was investigated by the Internal Affairs Bureau as a Level 1 use of force due to the injuries (unknown) sustained in connection with this incident under IAB Log # 17-29139. A Threat, Resistance, or Injury Report was prepared by PO Patrick Craig under TRI # 2017-077-000129-2. The allegation of Use of Force Level 1 will be closed as Information and Intelligence.								

Person's Last Name, First M.I. QUINTERO, ROGER			Role SUBJECT	Status UNIFORM MEMBER OF SERVICE	Res. Pct. [REDACTED]
MOS TAXID 943706	Command 077-077 PRECINCT	Rank SGT	Shield 05330		
Appointment Date 01/10/2007			Years Employed 10		

Nickname/Alias/Middle Name								
Allegations								
1	Full Allegation Fail to Provide Name/Shield -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 07/30/2017	Finding 12 - Unsubstantiated	Finding Date 10/12/2018	Allegation Removed NO	Allegation Disposition NONE
Comments This investigation disclosed that on July 29, 2017, ██████ called the IAB Command Center to report that she had requested the names of the MOS who were at the scene of the incident. There is video of the incident which shows ██████ asking PO Craig for information regarding the incident. PO Craig refers ██████ to the 77 Precinct. ██████ also asks PO Craig for his name and he again directs her to the 77 Precinct. The video does not show ██████ ask Sgt. Quintero or any other MOS on scene for their name or shield; however not all conversation is observed. Therefore, the allegation of Fail to Provide Name/Shield will be closed as Unsubstantiated.								
2	Full Allegation Additional Information Prior Log -	Classification NOTIFICATION/Additional Information	Allegation Index ADD-Additional Information	Allegation Date 07/30/2017	Finding 04 - Info. and Intelligence	Finding Date 10/12/2018	Allegation Removed NO	Allegation Disposition NONE
Comments This investigation disclosed that an unknown officer who was identified as PO Viera grabbed ██████ by the hair and dragged him inside of the rear seat of an RMP. ██████ further stated that PO Viera closed the RMP's door on his head. This allegation is addressed in PO Viera's findings. As such the allegation will be closed as Information and Intelligence.								
3	Full Allegation FADO Abuse of Authority - Fail to Provide Name/Shield	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 10/24/2018	Finding 04 - Info. and Intelligence	Finding Date 10/12/2018	Allegation Removed NO	Allegation Disposition NONE
Comments CCRB did not investigate this allegation. Sgt. Quintero is listed as a witness in CCRB Case # 201706371. As such the allegation will be closed as Information and Intelligence.								
4	Full Allegation FADO Abuse of Authority -	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 07/30/2017	Finding 04 - Info. and Intelligence	Finding Date 10/12/2018	Allegation Removed YES	Allegation Disposition NONE
Comments								

Person's Last Name, First M.I. ONDREJACK, MATTHEW G			Role SUBJECT	Status UNIFORM MEMBER OF SERVICE	Res. Pct. █████
MOS TAXID 956989	Command 077-077 PRECINCT	Rank POM	Shield 02668		
Appointment Date 07/09/2014			Years Employed 3		
Nickname/Alias/Middle Name					

Allegations								
1	Full Allegation Fail to Provide	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 07/30/2017	Finding 12 - Unsubstantiated	Finding Date 10/12/2018	Allegation Removed NO	Allegation Disposition NONE

Name/Shield -								
Comments This investigation disclosed that on July 29, 2017, ██████ called the IAB Command Center to report that she had requested the names of the MOS who were at the scene of the incident. There is video of the incident which shows ██████ asking PO Craig for information regarding the incident. PO Craig refers ██████ to the 77 Precinct. ██████ also asks PO Craig for his name and he again directs her to the 77 Precinct. The video does not show ██████ ask PO Ondrejack or any other MOS on scene for their name or shield; however not all conversation is observed. Therefore, the allegation of Fail to Provide Name/Shield will be closed as Unsubstantiated.								
2	Full Allegation Additional Information Prior Log -	Classification NOTIFICATION/Additional Information	Allegation Index ADD-Additional Information	Allegation Date 07/30/2017	Finding 04 - Info. and Intelligence	Finding Date 10/12/2018	Allegation Removed NO	Allegation Disposition NONE
Comments This investigation disclosed that an unknown officer who was identified as PO Viera grabbed ██████ by the hair and dragged him inside of the rear seat of an RMP. ██████ further stated that PO Viera closed the RMP's door on his head. This allegation is addressed in PO Viera's findings. As such the allegation will be closed as Information and Intelligence.								
3	Full Allegation FADO Abuse of Authority - Fail to Provide Name/Shield	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 10/24/2018	Finding 04 - Info. and Intelligence	Finding Date 10/12/2018	Allegation Removed NO	Allegation Disposition NONE
Comments CCRB did not investigate this allegation. PO Ondrejack is listed as a witness in CCRB Case # 201706371. As such the allegation will be closed as Information and Intelligence.								
4	Full Allegation FADO Abuse of Authority -	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 07/30/2017	Finding 04 - Info. and Intelligence	Finding Date 10/12/2018	Allegation Removed YES	Allegation Disposition NONE
Comments								

PO Rosiello assisted PO Craig in handcuffing [REDACTED]. Video shows PO Rosiello with his hands around [REDACTED]'s waist with his head down. At no point is he observed punching, striking, or kicking [REDACTED]. PO Rosiello noted that he had one hand cuffed, however [REDACTED] was not providing the other hand when PO Craig struck him. This investigation determined that PO Rosiello was physically engaged in restraining [REDACTED] prior to cuffing but that no other force was utilized during the apprehension. Therefore, this allegation is closed as Unfounded.								
3	Full Allegation Disputed Search of a Vehicle - Enforcement Action Taken - Arrest/Summons	Classification Abuse of Dept Regulations	Allegation Index Disputed Search	Allegation Date 10/24/2018	Finding 10 - Unfounded	Finding Date 10/12/2018	Allegation Removed NO	Allegation Disposition NONE
Comments This investigation disclosed that on July 29, 2017, [REDACTED] called the IAB Command Center to report that her son, [REDACTED] sustained injuries in connection with Summons # [REDACTED] for Disorderly Conduct / Violent Behavior at the corner of [REDACTED]. [REDACTED] stated that he was stopped while inside a vehicle and then searched. Initially Central gave the description of a White male with a firearm who was wearing a white shirt and khaki pants. A witness later described the perpetrator as being a light skinned Indian with a gun, who was wearing a white Shirt, and beige pants. [REDACTED] is a Black male that was wearing a pale yellow shirt that appeared white. Officers observed [REDACTED] enter the UBER Vehicle and subsequently conducted a stop of the vehicle. [REDACTED] refused multiple directives to exit the vehicle, thus providing the officers a reasonable belief that [REDACTED] was concealing something on his person or in the vehicle. Upon removal from the vehicle, the officers conducted a lawful search of the vehicle. The allegation was addressed by CCRB under CCRB Case # 201706371 as FADO Abuse of Authority - Search of a Vehicle and was closed as Alleged Victim Uncooperative, however CCRB's case is not closed and was not reviewed. This investigation determined that the vehicle was searched by PO Viera and PO Khitab. Therefore the allegation of Disputed Search of a Vehicle - Enforcement Action Taken will be closed as Unfounded.								
4	Full Allegation FADO Abuse of Authority - Search of a Vehicle - Enforcement Action Taken	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 10/24/2018	Finding 04 - Info. and Intelligence	Finding Date 10/12/2018	Allegation Removed NO	Allegation Disposition NONE
Comments This allegation was investigated by CCRB under CCRB Case # 201706371 for searching the UBER vehicle after [REDACTED] was removed. CCRB provided a finding of Alleged Victim Uncooperative, however the CCRB Case is not closed and the case was not provided for review. This allegation is addressed by IAB under Allegation # 3.								

Person's Last Name, First M.I. PATEL, AVINASH A			Role SUBJECT	Status UNIFORM MEMBER OF SERVICE	Res. Pct.
MOS TAXID 940551	Command 077-077 PRECINCT	Rank SGT	Shield 05322		
Appointment Date 01/09/2006			Years Employed 11		
Nickname/Alias/Middle Name					

Allegations								
1	Full Allegation Fail to Provide Name/Shield -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 07/30/2017	Finding 12 - Unsubstantiated	Finding Date 10/12/2018	Allegation Removed NO	Allegation Disposition NONE
Comments This investigation disclosed that on July 29, 2017, [REDACTED] called the IAB Command Center to report that she had requested the names of the MOS who were at the scene of the incident. There is video of the incident which shows [REDACTED] asking PO Craig for information regarding the incident. PO Craig refers [REDACTED] to the 77 Precinct. [REDACTED] also asks PO Craig for his name and he again directs her to the 77 Precinct. The video does not show Ms. [REDACTED] ask Sgt. Patel or any other MOS on scene for their name or shield; however not all conversation is observed. Therefore, the allegation of Fail to Provide Name/Shield will be closed as Unsubstantiated.								
2	Full Allegation	Classification NOTIFICATION/Additional Information	Allegation Index ADD-Additional Information	Allegation Date 07/30/2017	Finding 04 - Info. and Intelligence	Finding Date 10/12/2018	Allegation Removed NO	Allegation Disposition NONE

Additional Information Prior Log -								
Comments This investigation disclosed that an unknown officer who was identified as PO Viera grabbed [REDACTED] by the hair and dragged him inside of the rear seat of an RMP. [REDACTED] further stated that PO Viera closed the RMP's door on his head. This allegation is addressed in PO Viera's findings. As such the allegation will be closed as Information and Intelligence.								
3	Full Allegation FADO Abuse of Authority - Fail to Provide Name/Shield	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 10/24/2018	Finding 04 - Info. and Intelligence	Finding Date 10/11/2018	Allegation Removed NO	Allegation Disposition NONE
Comments CCRB did not investigate this allegation for Sgt. Patel; however IAB did provide a finding for the concurrent allegation. As such the allegation will be closed as Information and Intelligence.								
4	Full Allegation FADO Abuse of Authority - Retaliation - for other	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 10/24/2018	Finding 04 - Info. and Intelligence	Finding Date 10/11/2018	Allegation Removed NO	Allegation Disposition NONE
Comments This allegation was investigated by CCRB under CCRB Case # 201706371 for directing the issuance of a summons to [REDACTED] in retaliation. CCRB Substantiated this finding. Charges and Specifications were preferred by CCRB. CCRB Specification # 1 addresses this allegation. IAB does not concur with this finding. The allegation is addressed by IAB in Allegation # 5.								
5	Full Allegation Retaliation (not MOS to MOS) - for other	Classification Abuse of Dept Regulations	Allegation Index RET-Retaliation On Non MOS	Allegation Date 10/24/2018	Finding 10 - Unfounded	Finding Date 10/11/2018	Allegation Removed NO	Allegation Disposition NONE
Comments This investigation disclosed that on July 29, 2017 Sgt. Nicole Gonzales (77 Precinct) called the Command Center to report that [REDACTED] (Complainant's Mother) walked into the 77 Precinct to report that her son, [REDACTED] was stopped by plainclothes officers and punched in the face in regards to Criminal Court Summons # [REDACTED] for Disorderly Conduct (Violent Behavior). [REDACTED] admits refusing to place his hands behind his back because he did not understand why he was being arrested. This investigation determined the stop of [REDACTED] was lawful. Sgt. Patel noted he removed [REDACTED] to another location due to safety concerns. [REDACTED] was issued a summons for disorderly conduct and for no other reason. Therefore, this investigation determined this allegation is Unfounded.								

Person's Last Name, First M.I. VIERA, ALEX J			Role SUBJECT	Status UNIFORM MEMBER OF SERVICE	Res. Pct. [REDACTED]
MOS TAXID 945080	Command 077-077 PRECINCT	Rank POM	Shield 14168		
Appointment Date 07/09/2007			Years Employed 10		
Nickname/Alias/Middle Name					

Allegations								
1	Full Allegation Fail to Provide Name/Shield -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 07/30/2017	Finding 12 - Unsubstantiated	Finding Date 10/12/2018	Allegation Removed NO	Allegation Disposition NONE
Comments								

2	Full Allegation Additional Information Prior Log -	Classification NOTIFICATION/Additional Information	Allegation Index ADD-Additional Information	Allegation Date 07/30/2017	Finding 04 - Info. and Intelligence	Finding Date 10/12/2018	Allegation Removed NO	Allegation Disposition NONE
Comments This investigation disclosed that an unknown officer who was identified as PO Viera grabbed [REDACTED] by the hair and dragged him inside of the rear seat of an RMP. [REDACTED] further stated that PO Viera closed the RMP's door on his head. This allegation is addressed in PO Viera's findings. As such the allegation will be closed as Information and Intelligence. This allegation is addressed in Allegation # 6.								
3	Full Allegation Disputed Stop of a Person - Enforcement Action Taken - Arrest/Summons	Classification Abuse of Dept Regulations	Allegation Index Disputed Stop	Allegation Date 02/26/2018	Finding 01 - Exonerated	Finding Date 10/12/2018	Allegation Removed NO	Allegation Disposition NONE
Comments This investigation disclosed that on July 29, 2017, [REDACTED] called the IAB Command Center to report that her son, [REDACTED] sustained injuries in connection with Summons # [REDACTED] for Disorderly Conduct / Violent Behavior at the corner of [REDACTED] [REDACTED] stated that after being searched, one of the responding officers (PO Craig) punched him in the face while attempting to place his hands behind his back. [REDACTED] stated that he did not place his hands behind his back willingly because he did not understand why he was being put in cuffs. PO Alex Viera prepared a Stop Report (STP-2017-077-010141) in regards to a male with a firearm. Initially Central gave the description of a White male with a firearm who was wearing a white shirt and khaki pants. A witness later described the perpetrator as being a light skinned Indian with a gun, who was wearing a white shirt, and beige pants. [REDACTED] is a Black male that was wearing a pale yellow shirt that appeared white. PO Viera stated that when [REDACTED] was approached, he acted in an aggressive manner and failed to comply with requests to show his hands. [REDACTED] also kept his hands in back of his waist band. Officers that were present at the stop had knowledge that [REDACTED] has been known to carry a firearm and that he has been arrested for possession of a firearm in the past. The stop of [REDACTED] was reasonable and based on the description provided and in proximity to the incident location. This investigation disclosed that the actions of PO Khitab were lawful and proper. As such, the allegation of Disputed Stop of a Person- Enforcement Action Taken will be closed as Exonerated.								
4	Full Allegation FADO Abuse of Authority - Fail to Provide Name/Shield	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 10/24/2018	Finding 04 - Info. and Intelligence	Finding Date 10/12/2018	Allegation Removed NO	Allegation Disposition NONE
Comments CCRB did not investigate this allegation for PO Viera; however IAB did provide a finding for the concurrent allegation. As such the allegation will be closed as Information and Intelligence.								
5	Full Allegation FADO Abuse of Authority - Search of a Vehicle - Enforcement Action Taken	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 10/24/2018	Finding 04 - Info. and Intelligence	Finding Date 10/12/2018	Allegation Removed NO	Allegation Disposition NONE
Comments This allegation was investigated by CCRB under CCRB Case # 201706371 for searching the UBER vehicle after [REDACTED] was removed. CCRB provided a finding of Alleged Victim Uncooperative, however the CCRB Case is not closed and the case was not provided for review. This allegation is addressed by IAB under Allegation # 9.								
6	Full Allegation Force - Physical Force	Classification Arrest Effected	Allegation Index O-Other	Allegation Date 10/24/2018	Finding 12 - Unsubstantiated	Finding Date 10/12/2018	Allegation Removed NO	Allegation Disposition NONE
Comments [REDACTED] stated that while handcuffed, an officer identified as PO Viera pursuant to this investigation did grab him by his hair, and dragged him inside the rear seat of an unmarked RMP from one side of the vehicle to another. [REDACTED] further stated that the same officer did close an RMP door on his head. Video recovered from the incident shows PO Viera assisting in placing [REDACTED] into the RMP and subsequently closing the door without noted incident or complaint from any persons during the incident. Although the video shows no misconduct, it is dark and not completely discernible. As such, this investigation was unable								

to prove or disprove that PO Viera dragged [REDACTED] by the hair or closed an RMP door on his head. The allegation is closed as Unsubstantiated.

7	Full Allegation FADO Force - Physical Force	Classification Arrest Effectuated	Allegation Index O-Other	Allegation Date 10/24/2018	Finding 04 - Info. and Intelligence	Finding Date 10/12/2018	Allegation Removed NO	Allegation Disposition NONE
Comments This allegation was investigated by CCRB under CCRB Case # 201706371. CCRB's finding is Exonerated. CCRB's case is not closed and was not reviewed. Therefore the allegation is closed as Information and Intelligence.								
8	Full Allegation FADO Discourtesy - Word	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 10/24/2018	Finding 04 - Info. and Intelligence	Finding Date 10/12/2018	Allegation Removed NO	Allegation Disposition NONE
Comments The allegation of FADO Discourtesy □ Word was investigated by CCRB under CCRB Case # 201706371. CCRB's finding for this allegation is Substantiated. Charges and Specifications were preferred by CCRB. CCRB Specification # 3 addresses this allegation. Therefore the allegation will be closed as Information and Intelligence.								
9	Full Allegation Disputed Search of a Vehicle - Enforcement Action Taken - Arrest/Summons	Classification Abuse of Dept Regulations	Allegation Index Disputed Search	Allegation Date 10/24/2018	Finding 01 - Exonerated	Finding Date 10/12/2018	Allegation Removed NO	Allegation Disposition NONE
Comments This investigation disclosed that on July 29, 2017, [REDACTED] called the IAB Command Center to report that her son, [REDACTED] sustained injuries in connection with Summons # [REDACTED] for Disorderly Conduct / Violent Behavior at the corner of [REDACTED]. [REDACTED] stated that he was stopped while inside a vehicle and then searched. Initially Central gave the description of a White male with a firearm who was wearing a white shirt and khaki pants. A witness later described the perpetrator as being a light skinned Indian with a gun, who was wearing a white Shirt, and beige pants. [REDACTED] is a Black male that was wearing a pale yellow shirt that appeared white. Officers observed [REDACTED] enter the UBER Vehicle and subsequently conducted a stop of the vehicle. [REDACTED] refused multiple directives to exit the vehicle, thus providing the officers a reasonable belief that [REDACTED] was concealing something on his person or in the vehicle. Upon removal from the vehicle, the officers conducted a lawful search of the vehicle. The allegation was addressed by CCRB under CCRB Case # 201706371 as FADO Abuse of Authority - Search of a Vehicle and was closed as Alleged Victim Uncooperative, however CCRB's case is not closed and was not reviewed. This investigation determined that the officers' search of the vehicle was proper. As such, the allegation of Disputed Search of a Vehicle - Enforcement Action Taken will be closed as Exonerated.								
10	Full Allegation FADO Abuse of Authority - Search of a Person - Enforcement Action Taken	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 10/24/2018	Finding 04 - Info. and Intelligence	Finding Date 10/12/2018	Allegation Removed NO	Allegation Disposition NONE
Comments This allegation was investigated by CCRB under CCRB Case # 201706371. CCRB's finding is Substantiated. CCRB's rationale for this finding is that PO Viera performed an improper frisk. Charges and Specifications were preferred by CCRB. CCRB Specification # 2 addresses this allegation. IAB does not concur with this finding. The allegation is addressed in Allegation # 11. Therefore the allegation is closed as Information and Intelligence.								
11	Full Allegation Disputed Search of a Person - Enforcement Action Taken - Arrest/Summons	Classification Abuse of Dept Regulations	Allegation Index Disputed Search	Allegation Date 10/24/2018	Finding 01 - Exonerated	Finding Date 10/12/2018	Allegation Removed NO	Allegation Disposition NONE
Comments This investigation disclosed that on July 29, 2017, [REDACTED] called the IAB Command Center to report that her son, [REDACTED] sustained injuries in connection with Summons # [REDACTED] for Disorderly Conduct / Violent Behavior at the corner of [REDACTED]. [REDACTED] stated that after being searched, one of the responding officers (PO Craig) punched him in the face while attempting to place his hands behind his back. [REDACTED] stated that he did not place his hands behind his back willingly because he did not understand why he was being put in cuffs. PO Alex Viera prepared a Stop Report (STP-2017-077-010141) in regards to a male with a firearm. Initially Central gave the description of a White male with a firearm who was wearing a white shirt and khaki pants. A witness later described the perpetrator as being a light skinned Indian with a gun, who was wearing a white Shirt, and beige pants. [REDACTED] is a Black male that was wearing a pale yellow shirt that appeared white. PO Viera stated that when [REDACTED] was approached, he acted in an aggressive manner and failed to comply with requests to show his hands. [REDACTED] also kept his hands in back of his waist band. Officers that were present at the stop had knowledge that [REDACTED] has been known to carry a firearm and that he has been arrested for possession of a								

firearm in the past. The stop and frisk of [REDACTED] was reasonable and based on the description provided and in proximity to the incident location. This investigation disclosed that the actions of PO Viera were lawful and proper. As such, the allegation of Disputed Search of a Person- Enforcement Action Taken will be closed as Exonerated.

12	Full Allegation FADO Abuse of Authority - Stop of a Vehicle - No Enforcement Action Taken	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 11/26/2018	Finding 04 - Info. and Intelligence	Finding Date 10/12/2018	Allegation Removed NO	Allegation Disposition NONE
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Comments

This allegation was investigated by CCRB under CCRB Case # 201706371 due to the officers stopping the UBER vehicle to which [REDACTED] had entered. CCRB provided a finding of Substantiated. Charges and Specifications were preferred by CCRB. CCRB Specification # 1 addresses this allegation. The allegation is addressed by IAB under Allegation # 13.

13	Full Allegation Disputed Stop of a Vehicle - No Enforcement Action Taken	Classification Abuse of Dept Regulations	Allegation Index Disputed Stop	Allegation Date 11/26/2018	Finding 01 - Exonerated	Finding Date 10/12/2018	Allegation Removed NO	Allegation Dispositive NONE
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Comments

This investigation disclosed that on July 29, 2017, [REDACTED] called the IAB Command Center to report that her son, [REDACTED] sustained injuries in connection with Summons # [REDACTED] for Disorderly Conduct / Violent Behavior at the corner of [REDACTED]. [REDACTED] stated that he was stopped while inside a vehicle and then searched. Initially Central gave the description of a White male with a firearm who was wearing a white shirt and khaki pants. A witness later described the perpetrator as being a light skinned Indian with a gun, who was wearing a white Shirt, and beige pants. [REDACTED] is a Black male that was wearing a pale yellow shirt that appeared white. Officers observed [REDACTED] enter the UBER Vehicle and subsequently conducted a stop of the vehicle. The allegation was addressed by CCRB under CCRB Case # 201706371 as FADO Abuse of Authority - Stop of a Vehicle and was Substantiated by CCRB. IAB does not concur with the CCRB finding. CCRB's case is not closed and was not reviewed. This investigation determined that the officers stop of the vehicle was proper, based on the description provided and the proximity to the incident location. As such, the allegation of Disputed Stop of a Vehicle - Enforcement Action Taken will be closed as Exonerated.

Person's Last Name, First M.I. KHITAB, UMAR			Role SUBJECT	Status UNIFORM MEMBER OF SERVICE	Res. Pct.
MOS TAXID 952929	Command 077-077 PRECINCT	Rank POM	Shield 20552		
Appointment Date 07/11/2012			Years Employed 5		
Nickname/Alias/Middle Name					

Allegations

1	Full Allegation Fail to Provide Name/Shield -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 07/30/2017	Finding 12 - Unsubstantiated	Finding Date 10/12/2018	Allegation Removed NO	Allegation Dispositive NONE
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Comments

This investigation disclosed that on July 29, 2017, [REDACTED] called the IAB Command Center to report that she had requested the names of the MOS who were at the scene of the incident. There is video of the incident which shows [REDACTED] asking PO Craig for information regarding the incident. PO Craig refers [REDACTED] to the 77 Precinct. [REDACTED] also asks PO Craig for his name and he again directs her to the 77 Precinct. The video does not show [REDACTED] ask PO Khitab or any other MOS on scene for their name or shield; however not all conversation is observed. Therefore, the allegation of Fail to Provide Name/Shield will be closed as Unsubstantiated.

2	Full Allegation Additional Information Prior Log -	Classification NOTIFICATION/Additional Information	Allegation Index ADD-Additional Information	Allegation Date 07/30/2017	Finding 04 - Info. and Intelligence	Finding Date 10/12/2018	Allegation Removed NO	Allegation Dispositio NONE
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Comments

This investigation disclosed that an unknown officer who was identified as PO Viera grabbed [REDACTED] by the hair and dragged him inside of the rear seat of an RMP. [REDACTED] further stated that PO Viera closed the RMP's door on his head. This allegation is addressed in PO Viera's findings. As such the allegation will be closed as Information and Intelligence.

3	Full Allegation Disputed Stop of a Person - Enforcement Action Taken - Arrest/Summons	Classification Abuse of Dept Regulations	Allegation Index Disputed Stop	Allegation Date 02/26/2018	Finding 01 - Exonerated	Finding Date 10/12/2018	Allegation Removed NO	Allegation Disposition NONE
Comments This investigation disclosed that on July 29, 2017, [REDACTED] called the IAB Command Center to report that her son, [REDACTED] sustained injuries in connection with Summons # [REDACTED] for Disorderly Conduct / Violent Behavior at the corner of [REDACTED]. [REDACTED] stated that after being searched, one of the responding officers (PO Craig) punched him in the face while attempting to place his hands behind his back. [REDACTED] stated that he did not place his hands behind his back willingly because he did not understand why he was being put in cuffs. PO Alex Viera prepared a Stop Report (STP-2017-077-010141) in regards to a male with a firearm. Initially Central gave the description of a White male with a firearm who was wearing a white shirt and khaki pants. A witness later described the perpetrator as being a light skinned Indian with a gun, who was wearing a white Shirt, and beige pants. [REDACTED] is a Black male that was wearing a pale yellow shirt that appeared white. PO Viera stated that when [REDACTED] was approached, he acted in an aggressive manner and failed to comply with requests to show his hands. [REDACTED] also kept his hands in back of his waist band. Officers that were present at the stop had knowledge that [REDACTED] has been known to carry a firearm and that he has been arrested for possession of a firearm in the past. The stop of [REDACTED] was reasonable and based on the description provided and in proximity to the incident location. This investigation disclosed that the actions of PO Khitab were lawful and proper. As such, the allegation of Disputed Stop of a Person- Enforcement Action Taken will be closed as Exonerated.								
4	Full Allegation Force - Physical Force	Classification Arrest Effected	Allegation Index O-Other	Allegation Date 10/24/2018	Finding 10 - Unfounded	Finding Date 10/24/2018	Allegation Removed NO	Allegation Disposition NONE
Comments This investigation disclosed that on July 29, 2017, Sgt. Nicole Gonzales (77 Precinct) called the Command Center to report that [REDACTED] (Complainant's Mother) walked into the 77 Precinct to report that her son, [REDACTED] was stopped by plainclothes officers and punched in the face in regards to Criminal Court Summons # [REDACTED] for Disorderly Conduct (Violent Behavior). [REDACTED] refused medical attention. [REDACTED] stated that he was punched in the face by a plainclothes officer while officers were attempting to put his hands behind his back. PO Craig was formally interviewed and stated that he believed that [REDACTED] had a firearm because he placed his right hand inside the rear of his waistband and refused to give officers his hands. PO Craig stated that he utilized one hand strike to [REDACTED]'s face in order to get control of his hands. This investigation determined that only PO Craig struck [REDACTED]. PO Khitab did not use any force to place [REDACTED] under arrest. [REDACTED] alleges that she was shoved by PO Khitab. PO Khitab was formally interviewed and stated that he shoved [REDACTED] while conducting crowd control. Video of the incident shows PO Khitab extend his arm in the direction of [REDACTED] with no force as she is being escorted from the scene. Therefore the allegation will be closed as Unfounded. This allegation was investigated by CCRB under CCRB Case # 201706371 and closed as Exonerated. CCRB's Case is not closed and was not provided.								
5	Full Allegation FADO Force - Physical Force	Classification Arrest Effected	Allegation Index O-Other	Allegation Date 10/24/2018	Finding 04 - Info. and Intelligence	Finding Date 10/11/2018	Allegation Removed NO	Allegation Disposition NONE
Comments This allegation was investigated by CCRB under CCRB Case # 201706371 for striking [REDACTED]. CCRB provided a finding of Exonerated. This investigation determined that only PO Craig struck [REDACTED]. PO Khitab did not use any force to place [REDACTED] under arrest. Therefore the allegation is closed as information and Intelligence. This allegation is addressed in Allegation # 4.								
6	Full Allegation FADO Abuse of Authority - Search of a Vehicle - Enforcement Action Taken	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 10/24/2018	Finding 04 - Info. and Intelligence	Finding Date 10/11/2018	Allegation Removed NO	Allegation Disposition NONE
Comments This allegation was investigated by CCRB under CCRB Case # 201706371 for searching the UBER vehicle after [REDACTED] was removed. CCRB provided a finding of Alleged Victim Uncooperative, however the CCRB Case is not closed and the case was not provided for review. This allegation is addressed by IAB under Allegation # 9.								
7	Full Allegation FADO Abuse of Authority - Stop of a Vehicle - No Enforcement Action Taken	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 10/24/2018	Finding 04 - Info. and Intelligence	Finding Date 10/11/2018	Allegation Removed NO	Allegation Disposition NONE
Comments 								

This allegation was investigated by CCRB under CCRB Case # 201706371 due to the officers stopping the UBER vehicle to which [REDACTED] had entered. CCRB provided a finding of Substantiated. Charges and Specifications were preferred by CCRB. CCRB Specification # 1 addresses this allegation. The allegation is addressed by IAB under Allegation # 8.

8	Full Allegation Disputed Stop of a Vehicle - Enforcement Action Taken - Arrest/Summons	Classification Abuse of Dept Regulations	Allegation Index Disputed Stop	Allegation Date 10/24/2018	Finding 01 - Exonerated	Finding Date 10/11/2018	Allegation Removed NO	Allegation Disposition NONE
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Comments

This investigation disclosed that on July 29, 2017, [REDACTED] called the IAB Command Center to report that her son, [REDACTED] sustained injuries in connection with Summons # [REDACTED] for Disorderly Conduct / Violent Behavior at the corner of [REDACTED]. [REDACTED] stated that he was stopped while inside a vehicle and then searched. Initially Central gave the description of a White male with a firearm who was wearing a white shirt and khaki pants. A witness later described the perpetrator as being a light skinned Indian with a gun, who was wearing a white Shirt, and beige pants. [REDACTED] is a Black male that was wearing a pale yellow shirt that appeared white. Officers observed [REDACTED] enter the UBER Vehicle and subsequently conducted a stop of the vehicle. The allegation was addressed by CCRB under CCRB Case # 201706371 as FADO Abuse of Authority - Stop of a Vehicle and was Substantiated by CCRB. IAB does not concur with the CCRB finding. CCRB's case is not closed and was not reviewed. This investigation determined that the officers stop of the vehicle was proper, based on the description provided and the proximity to the incident location. As such, the allegation of Disputed Stop of a Vehicle - Enforcement Action Taken will be closed as Exonerated.

9	Full Allegation Disputed Search of a Vehicle - Enforcement Action Taken - Arrest/Summons	Classification Abuse of Dept Regulations	Allegation Index Disputed Search	Allegation Date 10/24/2018	Finding 01 - Exonerated	Finding Date 10/24/2018	Allegation Removed NO	Allegation Disposition NONE
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Comments

This investigation disclosed that on July 29, 2017, [REDACTED] called the IAB Command Center to report that her son, [REDACTED] sustained injuries in connection with Summons # [REDACTED] for Disorderly Conduct / Violent Behavior at the corner of [REDACTED]. [REDACTED] stated that he was stopped while inside a vehicle and then searched. Initially Central gave the description of a White male with a firearm who was wearing a white shirt and khaki pants. A witness later described the perpetrator as being a light skinned Indian with a gun, who was wearing a white Shirt, and beige pants. [REDACTED] is a Black male that was wearing a pale yellow shirt that appeared white. Officers observed [REDACTED] enter the UBER Vehicle and subsequently conducted a stop of the vehicle. [REDACTED] refused multiple directives to exit the vehicle, thus providing the officers a reasonable belief that [REDACTED] was concealing something on his person or in the vehicle. Upon removal from the vehicle, the officers conducted a lawful search of the vehicle. The allegation was addressed by CCRB under CCRB Case # 201706371 as FADO Abuse of Authority - Stop of a Vehicle and was closed as Alleged Victim Uncooperative, however CCRB's case is not closed and was not reviewed. This investigation determined that the officers' search of the vehicle was proper. As such, the allegation of Disputed Search of a Vehicle - Enforcement Action Taken will be closed as Exonerated.

10	Full Allegation FADO Abuse of Authority - Fail to Provide Name/Shield	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 11/26/2018	Finding 04 - Info. and Intelligence	Finding Date 10/24/2018	Allegation Removed NO	Allegation Disposition NONE
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Comments

CCRB did not investigate this allegation for PO Khitab; however IAB did provide a finding for the concurrent allegation. As such the allegation will be closed as Information and Intelligence.

Reporting Officer:	Rank POF	Name KING MONIQUE		Tax Reg. No. 932172		Command CC-COMMAND CENTER
Reviewing Supervisor:	Manner of Closing -	Date Reviewed 08/02/2017	Date of Next Review	Name DELPILAR ANA		Supv. Tax No. 930016
Endorser:	Rank CPT	Name JOHNSON COLLIN	Tax Reg. No. 938722	Command CC-COMMAND CENTER	DateTime Reviewed 07/30/2017 05:01	Status
Comments						
Endorser:	Rank SGT	Name GARCIA MICHAEL	Tax Reg. No. 934902	Command CC-COMMAND CENTER	DateTime Reviewed 07/30/2017 12:29	Status

	Comments					
Endorser:	Rank SGT	Name GARCIA MICHAEL	Tax Reg. No. 934902	Command CC-COMMAND CENTER	DateTime Reviewed 08/02/2017 12:05	Status
	Comments					
Endorser:	Rank DT2	Name DELPILAR ANA	Tax Reg. No. 930016	Command ASM-ASSESSMENT	DateTime Reviewed 08/02/2017 12:22	Status
	Comments					